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PUBLIC SERVICE COMMISSION

EVALUATION REPORT PREPARED PURSUANT TO ARTICLE 234 (2) (H) OF THE CONSTITUTION FOR 2024/2025 FINANCIAL YEAR

STATUS OF COMPLIANCE WITH VALUES AND PRINCIPLES IN ARTICLES 10 AND 232 OF THE CONSTITUTION FOR THE FINANCIAL YEAR 2024/2025

1.0 MANDATE OF THE PUBLIC SERVICE COMMISSION

The Commission is established under Article 233 of the Constitution and its powers and functions are prescribed under Article 234 of the Constitution and include establishing and abolishing offices in the public service, appointing persons to hold or act in those offices, confirming appointments and exercising disciplinary control over and removing persons holding or acting in public offices.

The Commission is also responsible for promoting the values and principles in Articles 10 and 232 throughout the public service, evaluating and reporting to the President and Parliament on the extent to which the values and principles are complied with in the public service, investigating, monitoring and evaluating the organisation, administration and personnel practices of the public service, ensuring that the public service is efficient and effective and developing human resources in the public service.

In addition, the Commission is mandated to review and make recommendations to the national government in respect of conditions of service, code of conduct and qualifications of officers in the public service. It also hears and determines appeals in respect of county governments' public service and performs any other functions and exercises any other powers conferred by national legislation.

Other constitutional functions include recommending to the President persons to be appointed as Principal Secretaries under Article 155 and processing petitions for removal of the Director of Public Prosecutions under Article 158.

The functions conferred by legislation include the administration of the declaration of income, assets and liabilities under Part IV of the Public Officer Ethics Act, 2003 (Now repealed by the Conflict of Interest Act, 2025). Although the Act was enacted before the promulgation of the Constitution 2010, it gave effect to the values and principles in Articles 10 and 232.

2.0 BACKGROUND

This Report is prepared pursuant to Articles 234 (2) (c) and (h) of the Constitution, which require the Commission to promote, evaluate and report to the President and Parliament on the extent to which the values and principles in Articles 10 and 232 of the Constitution are complied with in the Public Service.

The values and principles in Articles 10 and 232 are anchored in the Constitution to serve as signposts guiding organisational culture and the behaviour of public servants while discharging their duties and responsibilities and to place citizens at the centre of service delivery. Public organisations and public officers are required to apply the values and principles as they discharge their day-to-day duties. Therefore, the values and principles help ensure improved service delivery, consistency in the service standards across public organisations, equity, equality and inclusion, national cohesion, efficiency and effectiveness of the public service.

3.0 THE NATIONAL VALUES AND PRINCIPLES OF GOVERNANCE

Article 10(1) of the Constitution provides that the national values and principles of governance bind all State organs, State officers, public officers and all persons whenever they apply or interpret the Constitution, enact, apply or interpret any law; or make or implement public policy decisions. The values are in four clusters. The first cluster is on nationhood and includes patriotism, national unity, sharing and devolution of power, the rule of law, democracy and participation of the people; the second is people-centred and includes human dignity, equity, social justice, inclusiveness, equality, human rights, non-discrimination and protection of the marginalised, the third is on the exercise of power donated to office holders and include: good governance, integrity, transparency and accountability; and last cluster on sustainable development is on utilisation of resources for the benefit of the present generation and future generations as well.

4.0 THE VALUES AND PRINCIPLES OF PUBLIC SERVICE

Article 232 of the Constitution provides the values and principles of public service. These values and principles apply to the public service in all state organs at both levels of government and all state corporations.

The values and principles guide institutions on standards of service delivery and utilisation of resources and diversity and inclusion. The values of service delivery standards include high standards of professional ethics; efficient, effective and economical use of resources; responsive, prompt, effective, impartial and equitable provision of services; involvement of the people in the process of policymaking; accountability for administrative acts; transparency and provision to the public of timely and accurate information.

On diversity and inclusion, the Constitution requires that fair competition and merit be the basis for appointments and promotions in public service. However, institutions are required to ensure representation of Kenya's diverse communities and afford adequate and equal opportunities for appointment, training and advancement at all levels of the public service to men and women, members of all ethnic groups and Persons with Disabilities.

The Public Service Commission Act, CAP 185, provides the specifics of what the Commission is required to do in promoting, monitoring, evaluating and reporting on values and principles. The Commission has put in place programmes for promoting values and principles and integrated them into its regulations, policies and procedures.

5.0 LEGAL, POLICY AND INSTITUTIONAL FRAMEWORK

This part provides for the legislative, policy and institutional framework for implementation of values and principles. These are the laws, policies and the institutions, which govern and guide the implementation process.

5.1 LEGAL FRAMEWORK

These are the laws that govern the implementation of values and principles in the public service. The laws guide on the promotion, monitoring, evaluation and reporting on values and principles in Articles 10 and 232.

(a) *The Constitution*

The Constitution is value-laden and each of the chapters opens with guiding values and principles. The significance of the values is seen throughout the Constitution starting from the preamble where Kenyans aspire for a government based on essential values of human rights, equality, freedom, social justice and the rule of law. Further, Article 4 (2) of the Constitution provides that Kenya is a republic, based on a multi-party democracy and founded on national values and principles of governance referred to in Article 10.

There are other Articles that impact on the progress of realising the values and principles in Articles 10 and 232. These include Articles 27, 54 and 56, which speak to inclusion regarding gender, Persons with Disabilities (PWDs) and minority and marginalised communities, respectively. Article 201 on public finance principles speaks to the value of efficient, effective and economic use of resources. Chapter Four on human rights speaks to Article 10 (2) (b) on human dignity, equity, social justice, inclusiveness, equality, human rights, non-discrimination and protection of the marginalised; and Chapter Six on leadership and integrity speaks to both Article 10 on good governance, integrity, transparency and accountability; and 232 on high standards of professional ethics.

(b) *Legislation*

(i) *The Public Service (Values and Principles) Act, CAP 185A*

This is the principal Act for the implementation of Article 232. The Act prescribes the measures to be observed to realise all values and principles. For high standards of professional ethics, the Act requires all registered professionals to subscribe to their professional codes of conduct. It also requires that they be in good standing with their professional bodies.

On efficient, effective and economic use of resources, public institutions are required to avoid the waste of resources. For the principles of responsive, prompt, effective, impartial and equitable provision of services, institutions are required to simplify their procedures and develop and implement service charters, which are accountability documents that provide information on accessing the services, the cost and the timeline. For transparency and provision to the public of timely, accurate information, the Act requires institutions to develop guidelines for access to information.

Regarding accountability for administrative acts, institutions and officers are required to keep accurate records of administrative actions, maintain a record of relevant documents and establish mechanisms for expedient redress of complaints. For fair competition and merit as the basis of appointments and promotions in the public service, the Act provides circumstances when the principle may not be strictly applied to facilitate the achievement of proportionate representation. For public participation, institutions are required to develop public participation guidelines and provide feedback to the public after public participation. Public institutions are also required to incentivise promotion of values and principles through the issuance of commendations, honours and awards.

(ii) *The Public Service Commission Act, CAP 185*

The Act gives effect to the Commission's mandate prescribed in Article 234 of the Constitution. Section 63 of the Public Service Commission Act, CAP 185 guides the Commission on what it should do in the discharge of its constitutional mandate of promoting, monitoring, evaluating and reporting on the levels of compliance with the values in Articles 10 and 232 in the public service. The measures prescribed in the Act include integrating the values and principles in the regulations and procedures; creating awareness and inculcation of values and principles among officers to facilitate compliance; and overseeing the implementation and effectiveness of the programmes.

The Commission is also required to assess and report on the public bodies' compliance with their obligations under international treaties and conventions on good governance, integrity and anti-corruption. The Commission may also collaborate with other institutions working in the field of good governance, for the purpose of promoting and protecting the values and principles and recommend effective measures for promotion of the values and principles in the public service.

The Act also sets standards for the discharge of the Commission's mandate and various personnel practises which impact on efficiency and effectiveness such as the need for a workload analysis to inform an organisational structure, the conduct of training needs analysis, equitable distribution of training opportunities and undertaking of training impact analysis.

(iii) *The Leadership and Integrity Act, 2012*

This Act gives effect to Chapter Six of the Constitution on leadership and Integrity. The Act prescribes the general Code of Conduct for State Officers, which is deemed to apply to public officers.

On professionalism Section 11 of the Act requires public officers to carry out duties of the office in a manner that maintains public confidence in the integrity of the office, treat members of the public and other public officers with courtesy and respect, not discriminate against any person, maintain high standards of performance and level of professionalism. If a public officer is a member of a professional body, they should observe and comply with that body's ethical and professional requirements.

Section 14 of the Act regulates the management of gifts and requires institutions to maintain gift registers. The Act also provides for the management of conflicts of interest under section 16 and requires institutions to maintain conflict of interest registers. The second schedule to the Act requires public officers to proactively declare possible conflicts of interest through the filing of a schedule of registrable interests.

(iv) *The Public Officer Ethics Act, 2003 (repealed in August, 2025)*

This Act was enacted before the Constitution, but it embodied some of the values and principles in the Constitution. Section 9 of the Act provided for professionalism and prescribes the standards public officers must observe to promote professionalism. The standards were the same as those prescribed in Section 11 of the Leadership and Integrity Act, 2012. The Act prescribed a general code of conduct and ethics, which institutions were required to customise. Section 10 required observance of the rule of law, which is one of the values under Article 10. Section 26 requires officers to make declarations of income, assets, and liabilities on joining service, every two years, and on exiting service. This was a measure of promoting transparency and accountability.

(v) *The Public Finance Management Act, 2012*

This Act operationalises Chapter 12 of the Constitution and gives effect to the principles of public finance, which are in tandem with the values and principles in Articles 10 and 232. The principles of public finance include: openness and accountability, including public participation in financial matters, adoption of a public finance system that promotes an equitable society, more specifically that the burden of taxation shall be shared fairly, revenue raised nationally shall be shared equitably among national and county governments and expenditure shall promote the equitable development of the country, including by making special provision for marginalised groups and areas.

Further, the burdens and benefits of the use of resources and public borrowing are shared equitably between present and future generations, public money is used prudently and responsibly, with clear fiscal reporting.

The Act gives effect to these principles by embedding measures and standards, including the need for institutions to develop strategic

plans that are aligned with the medium-term development plan. The strategic plans are the basis upon which institutions are funded. The Act also lays a basis for the determination of ratios which promote efficiency in utilisation of the financial resources, including the 70:30 ratio on recurrent to development expenditure and the 65:35 ratio on operation and maintenance to personnel emoluments. It also makes provision for quarterly reporting by institutions on the implementation of budgets.

(vi) *The Public Procurement and Asset Disposal Act, 2015*

The Public Procurement and Asset Disposal Act, 2015, prescribes the standards public institutions must observe when undertaking procurement. It establishes the Public Procurement Regulatory Authority (PPRA) and the Public Procurement Appeals Review Board (PPARB), which are supposed to address complaints and appeals related to procurement.

Section 93 of the Public Procurement and Disposal Act, 2015 requires accounting officers to undertake pre-qualification of suppliers for purposes of identifying the most qualified firms for prequalification of suppliers. Those prequalified are listed in the Public Procurement Information Portal (PPIP).

Section 157(5) requires an Accounting Officer of a procuring entity to reserve a prescribed percentage of its procurement budget, which shall not be less than 30%, for the disadvantaged group. The disadvantaged groups include women, youth, and Persons with Disabilities.

Section 181 prescribes a Public Procurement Code of Ethics for procuring entities. The purpose of the code is to regulate the conduct of persons participating in procurement processes in the public service. Institutions are required to customise the said code.

(vii) *Data Protection Act, CAP 411C*

Section 18 of the Data Protection Act, 2019, requires all data handlers to register as data processors and controllers with the Data Protection Commissioner.

(viii) *The Public Procurement and Asset Disposal Regulations, 2020*

The regulations require public procuring entities to disclose public procurement and asset disposal information and submit reports on public procurement and asset disposal transactions to PPRA. The PPIP was introduced as a procurement system that promotes efficiency, effectiveness, fairness, transparency, and objectivity.

(ix) *The Public Service Commission (Performance Management) Regulations, 2021*

The regulations prescribe the framework for the management of the performance of institutions and individual officers. Public institutions are required to develop strategic plans from which annual performance contracts will be drawn. The performance contracts for the institutions are to be signed by 30th August of each financial year and cascaded to officers by 15th September each year.

Institutions are required to establish Employee Performance Management Committees (EPMCs) to oversee the implementation of the signed contract, moderate the evaluation results for employees, and decide on the officers to be rewarded, placed on performance improvement, or sanctioned.

5.2 POLICY FRAMEWORK

The National Values Policy, Sessional Paper Number 8 of 2013, sets the benchmarks and strategies for promoting national values and principles of governance. It aims to achieve an accountable and democratic electoral process, promote inclusion and observance of the rule of law, strengthen devolution, and inculcate patriotism.

The Commission issued the Framework for Implementing the Values and Principles in Articles 10 and 232 of the Constitution in 2015. The Framework sets performance standards and indicators, and guides promotional strategies. It envisaged the formulation of an overarching Citizen Service Delivery Charter, which incorporates values and principles and the undertaking of an annual compliance assessment through a citizen satisfaction survey.

Kenya Vision 2030: Although the Kenya Vision 2030 was adopted in 2008, it addresses the same issues that the values and principles in Articles 10 and 232 seek to achieve. The Vision promotes the following values, among others: sustainable development, human rights, social justice, human dignity, equity and equality, rule of law, democracy and participation of the people, transparency, and accountability.

The Vision is grounded on three pillars: Social, Economic, and Political. It emphasises the need to implement interventions that promote equity and equality. To implement the Vision, the Government has, over the years, adopted several programmes to address inequalities in education and training, health, water and sanitation, housing and urbanisation. Other programmes implemented seek to improve productivity in arid and semi-arid lands, youth unemployment, and the economic status of women and vulnerable groups.

The Bottom-Up Economic Transformation Agenda 2022-2027: The Agenda seeks to promote inclusive growth through the adoption of various strategies in agriculture and food security; Micro, Small, and Medium Enterprise (MSME); Digital superhighway and creative economy; healthcare; housing and settlement; and environment and climate change. It also seeks to put in place interventions that address challenges faced by vulnerable groups: the youth, women, PWDs, and the elderly. It aims to promote good governance by adopting a rights-based approach in service delivery and promoting transparency and accountability in public affairs by institutionalising open governance through all state organs and agencies and publishing an annual state of openness report.

National Cohesion and Integration (Sessional Paper No. 9 of 2013) aims to make Kenya an equitable society that is politically, economically, and socially cohesive, where citizens appreciate diversity, have a shared vision, and feel a sense of belonging. It seeks to address socioeconomic inequalities, manage ethnic and socio-cultural diversities, and prevent conflicts, which negatively impact national unity and development.

The National Policy for Peace Building and Conflict Management (Sessional Paper No. 5 of 2014) focuses on peacebuilding and conflict management to promote peaceful co-existence and human security, which are fundamental for sustainable development and a just and peaceful society. The Policy fosters the values of national unity, equality before the law, observance of the rule of law, integrity, honesty, accountable leadership, and equitable distribution of wealth, among others.

The National Policy on Gender and Development (Sessional Paper No.2 of 2019) prescribes measures that, when implemented, promote equity and equality of women and men. The Policy requires identifying and removing barriers to equitable gender roles and relations and promotes the values of non-discrimination and inclusion.

The Kenya Youth Development Policy 2019 aims to ensure that the youth play their roles in the country's development. The Policy promotes the values of participation of the people, equality, human rights, and human dignity, among others. The youth form the largest percentage of the population and have a bigger stake in the country's future and, therefore, should play a major role in development. Implementing the Policy will result in the active participation of the youth in national development.

The National Land Use Policy (Sessional Paper No. 1 of 2017) defines the measures required to address the critical issues of land administration, access to land, land use planning, restitution of historical injustices, environmental degradation, and conflicts. It also addresses the unplanned proliferation of informal urban settlements and the socio-economic rights of minority and marginalised groups concerning land ownership. The Policy promotes the values of inclusiveness, non-discrimination, protection of the marginalised, and sustainable development.

5.3 INSTITUTIONAL FRAMEWORK

Various institutions established and mandated with different roles in the implementation of Constitutional values and principles. These include Constitutional Commissions and Independent Offices (CCIOs), the Judiciary, Parliament, and learning institutions at different levels.

The Commission is mandated to develop human resources in the public service. One of the institutions the Commission collaborates with in the promotion of values and principles is the Kenya School of Government (KSG). The uptake of values in the public service can be accelerated through cadre-appropriate instructional material at different levels of learning and training. The Kenya School of Government is strategically placed to infuse and inculcate the values and principles at all levels of the public service since it's the premier training institution for public officers.

The Kenya Institute of Curriculum Development (KICD) is mandated to develop curricula for educational institutions in the country.

The National Values Policy, the Leadership and Integrity Act, 2012, the Public Service (Values and Principles) Act, CAP 185A, and the draft Public Service Values and Principles Policy recognise that one way of accelerating the uptake of the constitutional values is to ensure that the values and principles are inculcated in learners at all levels of learning. This requires age-appropriate curricula.

The Directorate of National Cohesion and Values. This directorate is established under the National Values Policy and is responsible for the preparation of the State of the Nation Address by the President to Parliament on the progress made on the implementation of national values and principles of governance.

There is also a department responsible for performance contracting in the public service, which is an important partner in the mainstreaming of values and principles in the public service. Some of the targets set for evaluation include targets that promote efficiency and effectiveness of the public service. The values and principles targets may be uploaded onto the performance contracting platform, evaluated, scored, and rated as part of the strategy through which the values are promoted.

High standards of professional ethics are one of the thematic areas evaluated on compliance with values and principles. Professional societies play a crucial role in promoting adherence to professional standards, especially among members of regulated professional societies.

Law enforcement agencies are also important partners in the implementation of values and principles. The law enforcement agencies help enforce compliance with the prescribed values and principles. These agencies include the National Public Service (NPS), the Ethics and Anti-Corruption Commission (EACC), and the Director of Public Prosecutions (DPP), among others.

The values and principles in Article 10 of the Constitution apply to all persons, whether in private or public service. While the public institutions are accountable for the implementation and observance of the values and principles, it is also important that members of the public give feedback on the extent to which the values and principles are complied with. In the spirit of public-private partnership, the Commission has a structured engagement with the private sector through private-sector associations on the undertaking of citizen satisfaction surveys, employee and workplace environment surveys, and governance audits. This targets citizens who are the service recipients. Such organisations include the Kenya Association of Private Sector Alliance, Civil Society, Faith-Based Organisations, and associations of professional societies.

6.0 METHODOLOGY

6.1 EVALUATION PROCESS

The evaluation process started with the review of the thematic areas, performance standards and indicators that guided the development of the data collection questionnaire. The data collection tool was piloted to a select number of respondents and the findings informed the review of the tool. The respondents from the targeted institutions were trained on the tool and the feedback from the training informed further refinement of the online survey tool.

The Commission formally communicated to the targeted institutions about the evaluation process with clear guidelines on data collection and submission via the online tool against the set submission timelines. The tool was thereafter sent to the targeted institutional respondents who facilitated the data collection process. The submitted data was then verified, collated, validated and analysed accordingly.

6.2 SAMPLING DESIGN

The evaluation targeted 606 institutions under the Commission's jurisdiction. The targeted institutions were 11 Constitutional Commissions and Independent Offices (CCIOs), 61 Ministries and State Departments (MDAs), 245 State Corporations and Semi-Autonomous Government Agencies (SAGAs), 41 Public Universities, 8 Statutory Commissions and Authorities and 240 Technical and Vocational Education Training Institutes (TVETIs).

6.3 COMPLIANCE EVALUATION OF VALUES AND PRINCIPLES

The nineteen National Values and Principles of Governance in Article 10 and the nine Values and Principles of Public Service in Article 232 are interrelated and interconnected. For instance, the implementation of the value on representation of Kenya's diverse communities in Article 232(1) (e) relates to national unity in Article 10(2) (a). Similarly, integrity in Article 10(2) (c) relates to high standards of professional

ethics in Article 232(1) (a) of the Constitution. For purposes of evaluation, the Commission clustered similar and interrelated values and principles into seven (7) thematic areas as follows:

- i. Service delivery improvement;
- ii. High standards of professional ethics in the public service;
- iii. Good governance, transparency, and accountability;
- iv. Performance management;
- v. Equitable allocation of opportunities and resources;
- vi. Public participation in the policy-making process; and
- vii. Efficiency, effectiveness, and economic use of resources and sustainable development.

6.4 EVALUATION METHODOLOGY

The evaluation exercise adopted a consultative and participatory approach between the Commission, targeted institutions, and oversight institutions regarding the compliance status in the implementation of constitutional values and principles. This ensured clarity and data integrity in the entire evaluation process. Information obtained from the responding institutions was analysed, and the findings were cross-referenced with secondary literature and data received from oversight institutions. The desk review of relevant literature served to assure data validity and reliability.

Primary data was collected through an online questionnaire comprising a mix of qualitative and quantitative questions. The online questionnaire was divided into two sections. Section I presented cross-cutting response items for the FY 2024/2025, while Section II sought to establish the status of implementation of recommendations in the FY2023/2024 values and principles report. The exercise also involved an analysis of previous values and principles compliance evaluation reports and other reports prepared by public institutions.

As was the case in the 2023/2024 evaluation, the survey was undertaken through an online instrument (Sogolytics Survey Tool). The tool, which is easy to create and deploy, has no limitations as to the number or type of questions and responses. It also provides free access to view and download the raw survey data. The question display logic option provides great flexibility in the provision of questionnaire responses by the respondents. The tool is versatile and allows for a variety of upload options, including Excel, PDF, PNG, JPEG, and video uploads where needed.

6.5 DATA PROCESSING AND ANALYSIS

Data from the online questionnaires were extracted, cleaned, verified, collated, validated, and standardised before being subjected to the analysis. Most of the analysis was undertaken using Advanced MS Excel tools and STATA MP18. Qualitative data were collated, categorised into respective thematic areas, analysed, and the results were generated in percentages (where applicable). Separately, quantitative data were grouped into related thematic areas. The evaluation also determined the overall compliance index, the compliance index for the 511 institutions evaluated, and the compliance indices by thematic areas. Tables, charts, and graphs were used to illustrate the survey findings.

6.6 RESPONSE RATE

The survey targeted 606 institutions out of which 511 (84.3%) responded to the cross-cutting Phase I survey, 40 failed to respond, 21 had partial/incomplete response while 34 were not included because they did not submit staff bio-data information, some of which were applicable to some of the thematic areas.

Additional information was sought from 41 institutions with oversight responsibilities over different service sectors through an online evaluation questionnaire. Of the 41 institutions, 34 (82.9%) submitted the required data, while 7 (17.1%) did not. Data from the oversight institutions were used to triangulate responses received from the 511 evaluated institutions.

7.0 PROMOTION OF VALUES AND PRINCIPLES IN THE PUBLIC SERVICE

7.1 STATUS OF PROMOTION OF VALUES AND PRINCIPLES IN THE PUBLIC SERVICE

The Commission undertook a Citizen Satisfaction and Impact Evaluation Survey in 2024. The survey assessed the respondents' level

of awareness of values and principles in Articles 10 and 232 of the Constitution. The survey established that more than half (55.6%) of the respondents were unaware of any of the values and principles in Articles 10 and 232. Over half (56.7%) of the respondents were in the category of the youth. This, therefore, indicates the need for relevant state and non-state actors to support the development and implementation of sustainable programmes to promote values and principles across the citizenry. The evaluation sought to establish the status of implementation of the strategies prescribed to promote values and principles.

7.2 Promotion of Values and Principles by the Commission

The Commission, during the 2024/2025 FY, sensitised public officers on values and principles from 14 institutions. The institutions were Kenya Ports Authority (KPA), National Cancer Institute, ICT Authority, Public Procurement Regulatory Authority (PPRA), South Eastern Kenya University (SEKU), Ministry of Foreign Affairs, State Department for Parliamentary Affairs, National Authority for the Campaign against Alcohol and Drug Abuse (NACADA), Competition Authority of Kenya, Anti-Counterfeit Authority of Kenya, Kenya Urban Roads Authority, Capital Markets Authority, National Oil Corporation of Kenya and Kenya Literature Bureau.

The Commission hosted the Sixth Association of African Public Services Commissions (AAPSCOM) in November 2024. The forum objectives were to promote professionalism in the conduct of the Commissions' business; develop and implement common capacity building strategies and programmes to recruit and retain a well-trained, professional and skilled public service in Africa; develop linkages and networks with international and regional bodies to promote the objectives of the Association and facilitate the implementation of the inter-governmental goals applicable in the public service.

The Commission administered the Declaration of Income, Assets and Liabilities (DIALs) for officers joining the service and final declarations for officers exiting the service. The filing of financial disclosures promotes transparency and accountability in the management of public resources, which is consistent with the values and principles in Articles 10(2)(c) and 232 (1)(b) of the Constitution. During the evaluation period, 144 (28.2%) of the evaluated institutions sensitised their officers on financial disclosures. In addition, 10,610 (74.1%) of the newly employed public officers complied with the 30 days for submission of initial declarations, while 4,810 (49.8%) submitted their final declarations within 30 days of exiting the service.

In compliance with good governance practices, the Commission released 165 wealth declaration records requested by various investigating agencies and public officers. The agencies were the Kenya Revenue Authority, the Ethics and Anti-Corruption Commission, the Asset Recovery Agency, and the Directorate of Criminal Investigations. The released declarations were to aid investigations into illicit enrichment and unexplained wealth among some public officers under investigation.

The Commission sensitised stakeholders on the Public Service Commission (County Appeals Procedures) Regulations, 2022, in December 2024. The Regulations, which were enacted in 2022, are informed by Article 234(2)(i) of the Constitution. The Regulations are meant to guide county public service boards, human resources management and development heads, county government employees, and any interested parties in processing human resources-related grievances. The one-day virtual sensitisation brought together County government attorneys, County Public Service Board secretaries, County government secretaries, and County Assembly Service Board clerks, among other key stakeholders.

7.3 PROMOTION OF VALUES AND PRINCIPLES BY PUBLIC INSTITUTIONS

Regarding promotion of values and principles by public institutions, it was established that:

- i. 32,804 (13.4%) of the 244,208 public officers across the 6 service sectors were trained on values and principles. The number of officers trained increased by 6,532 from the 26,272 trained in the 2023/2024 FY;
- ii. A total of 206 institutions reported having undertaken civic education activities, where 739,475 participants benefited.
- iii. 151 (29.5%) institutions utilised media talk shows to promote values and principles. The number of institutions that utilised media talk shows increased by 30 (24.7%) from the 121 reported in the 2023/2024 FY;

iv. Institutions utilised 1,445 media publications to promote values and principles, of which the newspaper was the most utilised, with 916 (63.4%). It was followed by newsletters with 134 (9.3%), reports with 67 (4.6%), and magazines with 65 (4.5%). The publication mode for 190 (13.1%) publications was, however not indicated;

v. The social media platform that was utilised in disseminating the highest number of topical issues was Facebook, with 1,362 (31.2%). It was followed by Instagram with 822 (18.8%), X (Twitter) with 708 (16.2%), and Website with 415 (9.5%). Facebook was equally rated as the most popular social media platform in the 2023/2024 FY report, with 2,120 (38%) topical issues disseminated.

vi. 98 (19.2%) of the 511 institutions promoted values and principles through artwork. The number of institutions increased by 4 from the 94 reported in the 2023/2024 FY;

vii. 188 (36.8%) of the 511 evaluated institutions promoted values and principles through performing arts. The number of institutions increased by 12 from the 176 reported in the 2023/2024 FY.

viii. 232 (45.4%) evaluated institutions promoted values and principles through 941 sporting activities. The number of institutions and sporting activities increased by 66 and 359 from the 116 and 582 reported in the 2023/2024 FY, respectively.

ix. 95 (18.6%) of the 511 evaluated institutions developed IEC materials on values and principles. The number of institutions declined by 58 from the 153 reported in the 2023/2024 FY.

EXECUTIVE SUMMARY OF THE REPORT ON THE STATUS OF COMPLIANCE WITH VALUES AND PRINCIPLES IN ARTICLE 10 AND 232 OF THE CONSTITUTION FOR THE FINANCIAL YEAR 2024/2025

This Report has been prepared pursuant to the Commission's mandate of promoting, evaluating and reporting on the status of compliance with the values and principles in Articles 10 and 232 of the Constitution in the public service. The introductory parts of the report provide the background information, legal policy and institutional framework which inform the evaluation and the methodology adopted. The report presents information on measures taken by institutions to promote the values and principles in Articles 10 and 232, findings on the status of implementation of previous recommendations and the extent to which public institutions have complied with the values and principles in the year under review.

The 2024/2025 compliance evaluation was undertaken using an online data collection tool. It targeted 606 institutions, out of which 511 (84.3%) responded to the cross-cutting Phase I survey, 40 failed to respond and 21 had partial/incomplete responses. A total of 34 institutions were excluded because they did not submit staff biodata information, some of which were applicable to the thematic areas. Additional information was sought in Phase II from 41 institutions with oversight responsibilities over different service sectors through a similar online questionnaire. Of the 41 institutions, 34 (82.9%) submitted the required data, while 7 (17.1%) did not respond. Data from the oversight institutions was used to triangulate responses received from the 511 evaluated institutions.

The evaluation covered general information on personnel practices for which the Commission is mandated to monitor, evaluate and investigate. The 7 thematic areas which are: service delivery improvement; high standards of professional ethics; good governance, transparency and accountability; performance management; equitable allocation of opportunities and resources; public participation in policy-making process; and efficiency, effectiveness and economic use of resources and sustainable development. The thematic areas were informed by respective values and principles in Articles 10 and 232 which are interrelated and interconnected.

The report also contains chapters on the status of implementation of the 2023/2024 recommendations, of which 124 (42%) were cross-cutting across all evaluated institutions and 16 (5.5%) were directed to authorised officers. Some of the recommendations were recurring from previous years. Low levels of implementation of recommendations undermines progress in promoting values and principles within public institutions. It raises concerns about systemic challenges in translating recommendations into actionable policies to address gaps in good governance and operational effectiveness within the public service.

On promotion of values and principles, public institutions are guided by Section 11 of the Public Service (Values and Principles) Act, CAP 185A which requires the public service to promote public participation in upholding public service values and principles through citizens' forums, village councils, faith-based organisations, boards of management of learning institutions, welfare and resident associations, market user committees, self-help groups and other registered and unregistered groups organised at the sub-county level. Further, Sessional Paper No. 8 of 2013 on National Values and Principles of Governance, as well as the Framework for the Implementation of Values and Principles (2015) guide the promotion of values and principles.

During the evaluation period, public institutions undertook various activities to promote the national and public service values and principles. The promotional activities included training, civic education, dissemination of IEC materials, use of radio and TV talk shows, use of print and social media, development of artworks, use of performing arts and use of sporting activities to promote values and principles.

The findings revealed that most (70.8%) of the evaluated institutions did not train officers on values and principles and even among those that did, very few (13.4%) public officers were trained. It is recommended that public institutions leverage technology and provide online training on values and principles to promote compliance.

Further, 205 (40.3%) of the institutions conducted civic education. The number of participants who benefited from civic education was however minimal, with the eligible population based on the 2019 census of persons aged 15 years and above being 29,228,116, of whom only 739,475 (2.5%) were sensitised. In addition to training and civic education as strategies to promote values, the evaluation found that 151 (29.5%) institutions used media talk shows to promote the values and principles. Furthermore, 172 (33.7%) institutions promoted values through print media, including magazines, newsletters, newspapers, reports, digital media and blogs. Moreover, 200 (39.1%) institutions utilised social media platforms such as Facebook (31.2%), Instagram (18.8%) and X (16.2%) to advance these values.

It was observed that 98 (19.2%) institutions promoted values through artwork, which included photography (46.5%), designs (33.5%), paintings/drawings (6.3%), crafts (5.8%), murals (4.9%), sculptures (2.2%) and graffiti (0.7%). Additionally, 188 (36.8%) institutions used performing arts like drama (41.8%), music (36.4%), poetry (12%) and film (9.7%) for promotion of values. A total of 232 (45.4%) institutions utilised sporting activities, including ball games (44.3%), athletics (38%), field events (7.2%), indoor games (6.4%), board games (1.3%), martial arts (1.1%), racket sports (0.7%), motor sports (0.5%) and aquatic activities (0.04%). Finally, 95 (18.6%) institutions developed IEC materials on values such as posters (60.1%), brochures (60%), flyers (47.4%) and banners (16.8%).

The evaluation on general information on personnel practices covered several aspects which cut across several thematic areas. These included establishment and abolition of offices, appointments, payroll management, leave management, secondments, transfers, authorised establishments and the total number of staff in post. These aspects impact on service delivery, performance management and efficient and economic use of resources.

On establishment of offices, Section 27 of the Public Service Commission Act, CAP 185 and policy guidelines on establishment and abolition of offices issued by the Commission in 2015, require that a workload analysis be conducted before an office is established and this guides the approval of organisational structures. A workload analysis informs the ideal number of offices to be established, consequently informs optimal staffing levels and is therefore a pre-requisite for approval of organisational structures.

The evaluation sought to determine whether the institutions that established new offices within the past three years conducted a workload and a job analysis and whether an approved organisational structure informed the staffing levels. The findings revealed that 86 (27.4%) institutions established new offices, out of which 15 (17.4%) had undertaken workload analysis, while 71 (82.6%) had not. 59 (11.5%) institutions undertook job analysis while 88.5% did not. It is therefore recommended that public institutions comply with the requirements on establishment and abolition of offices, and that workload analysis reports form part of the annexures when institutions request for the establishment of offices. Further, public institutions should undertake job analysis to inform the development of job descriptions and specifications for all new offices.

On staffing levels, 293 (93.3%) institutions submitted staff establishment reports based on approved organisational structures, 3 institutions had ideal staff establishments, 18 were over-established, while 272 were under-established. The over and under establishment affects service delivery as it may lead to overworking some employees where under establishment exists and under utilisation of employees where over establishment exists. It also impacts negatively on efficient and effective use of resources.

Officers in the public service are engaged on various terms and conditions of service. There are officers serving on permanent and pensionable terms and others short term contracts. Public institutions, may, where necessary engage casual workers, but they must comply with the requirements of the Employment Act, CAP 226 on engagement of casuals. The evaluation also sought to determine the distribution of officers in the public service by terms of service. It was established that 73.4% officers were serving on permanent and pensionable terms of service, while 13.6% were on fixed-term contracts. 27.8% of the institutions engaged 8,752 (3.6%) staff on temporary terms, a term not defined in the labour laws while 46% engaged 17,386 casuals. It is therefore recommended that, engagement of casuals should be as provided for in the Employment Act. Further, public institutions review their organisation structures to determine the optimal number of staff required to discharge their mandates and budget appropriately, develop human resource plans with a view to onboarding the required staff and implement the government policy on migrating public services online. This will reduce on the number of officers to be recruited by public institutions.

Employee age profile is critical in succession management. It enables an employer plan for replacement of staff projected to exit through retirements. This is important in ensuring there is no disruption in service delivery when staff exit through retirements. An analysis of the workforce established that age distribution in the public service had a normal representation curve, with 30.8% of public officers aged 18-35 years and an average age of 41.8 years across all service sectors. The number of officers aged above 60 was 3,185 (1.3%), out of whom 506 were not eligible to serve beyond 60 years. Representation of the youth was proportionate to their share of the national population, which constitutes 29%.

On staff exits, it was established that 287 (56.2%) institutions had 9,665 (4%) officers who exited the service during the 2024/2025 FY, out of whom 6,401 (66.2%) were male, 3,264 (33.8%) were female and 140 (1.4%) were PWDs. It was observed that 55% of the officers exited the service through normal retirement. 79.1% of the institutions reported to have conducted exit interviews, however 35.9% did not prepare an exit report. Of the officers who exited, 47.7% had their pension paid out as at 30th June, 2025.

Alongside determining the age profile for the public service, the evaluation also sought to establish whether public institutions had human resource plans in place. Human resource planning is critical in ensuring seamless delivery of public services. It was established that out of the 511 institutions evaluated, 59 (11.5%) had developed HR Plans while 88.5% had not. It is therefore recommended that all public institutions to develop five-year Human Resource Plans by 31st December 2026. It is further recommended that authorised officers in all public institutions to administer exit interviews for all staff exiting service. In addition, the Pensions Department to fast-track automation of the processing of pensions through Digitalisation and business process reengineering to facilitate a seamless transition of officers from monthly salary payments to monthly pension payments.

The TVETI sector is a key driver towards Kenya's mission to industrialisation. On TVETI staffing, it was established that the 197 TVET institutes evaluated had a total of 17,590 employees, of whom 75.5% were trainers, while 23.6% were non-teaching staff engaged by Boards of Management (BOM). Out of 13,274 trainers, 5,116 (38.5%) were employed by BoM, while 8,157 (61.5%) by PSC and one trainer was still serving under the Teacher's Service Commission.

It was observed that one-third of trainers in TVET institutions were employees of the Boards of Management. Further, there were more trainers for the general courses than the recommended ratio for the enrolled students and more students per tutor than recommended for the highly technical courses. It is therefore recommended that the State Department for TVETIs undertake an evaluation of each of the TVETIs to establish the needs of each concerning the highly technical courses, freeze recruitments of trainers for general courses until the ratio stabilises at the recommended 1:50 tutor-student ratio and the Boards/Councils be facilitated to recruit tutors for highly technical courses.

Public Institutions are established to deliver on specified mandates and to be able to do this, they require officers who may be technical or non-technical. Technical officers carry out the institution's core mandate, while non-technical staff provide support services. The Public Service Commission vide circular Ref. PSC/GEN/22/11/91) dated 8th August 2023 guided that the ratio of technical to non-technical staff in public institutions should be 70:30. The evaluation therefore sought to determine the ratio of technical to non-technical staff in the public service. It was established that 42.5% institutions operated at the recommended ratio of 70:30 technical to non-technical staff, while 57.5% were not compliant. It is recommended that public institutions with non-technical staff exceeding 30% of the total staff complement to give priority to recruitment of technical staff in future recruitments.

On payroll management, all public institutions are required to pay their staff through the institutional payroll system. Payment of salaries and allowances through a centralised system reduces the risk of fraud and unauthorised payments. It was established that majority (98.4%) of the officers were paid using the payroll while 3,868 (1.6%) officers were paid outside the payroll. In addition, 1,566 (0.6%) officers from 56 (11%) institutions were not paid during the FY 2024/2025. Some of the reasons given for non-payment of salaries included officers facing disciplinary action 253 (16.2%), officers on unpaid leave 39 (2.5%), officers on deployment 25 (1.6%) and officers being absent from duty without permission 20 (1.3%).

The government vide Circular REF OP.CAB.3/3/16, dated 9th December, 2024 by the Chief of Staff and Head of Public Service, required public institutions to migrate their HR data to the Human Resource Information System-Kenya (HRIS-Ke) by 30th June 2025. It was established that 93 (18.2%) institutions had migrated their HR Data to the Human Resource Information System (HRIS) Kenya while the majority (81.8%) had not. It is recommended that all public institutions that had not complied with the directive to comply by 30th June, 2026.

On secondment of staff to other institutions, under Section 42 of the PSC Act, CAP 185 an officer is eligible to be seconded for a period not exceeding 6 years. The Secondment guidelines issued by the Commission provide that for an officer to be seconded, the officer must be in job group M or equivalent or above. It was established that 171 (33.5%) institutions had 888 (0.4%) officers on secondment, of whom 772 (86.9%) were serving within the stipulated six-year secondment period, while 48 (5.4%) exceeded the prescribed period. It was also observed that 19.6% of the officers on secondment were below job group M or equivalent. It is therefore recommended that public institutions from which officers had remained on secondment for periods exceeding 6 years to release the officers, as they were in breach of the statutory period allowed for secondment.

Apart from the annual, maternity, paternity and sick leaves which are provided for in the Employment Act, there are other leaves allowed under the Public Service Commission Regulations 2020, and the Human Resources Policies and Procedures Manual 2016. These include, leave of absence, sabbatical leave, unpaid leave, sports leave, study leave, etc. The authority to approve and the period which an officer may remain on these leaves is prescribed in the regulations or the policies and procedures manuals of the respective institutions.

It was established that 279 officers were granted unpaid leave and 304 were granted leave of absence. It was however observed that 55.6% of the officers who took unpaid leave exceeded the 12 months prescribed under PSC Regulations 2020, while 89.1% officers proceeded on leave of absence without authority from the Commission as required under the regulations. It is recommended that the authorised officers responsible for the officers who exceeded the leave of absence and unpaid leave period to take disciplinary action against the officers.

Under the thematic area for service delivery improvement, the performance indicators evaluated included: Customisation of service charters, maintenance of customer service, complaint and compliment registers and patenting of products developed. Other indicators included, the distribution of Huduma centers, decentralisation of services, Customisation of facilities for access by PWDs, implementation of the knowledge management policy, establishment of lactation stations, registration as data controllers or processors and participation in the public service week.

It was established that 74 (14.5%) institutions had customised their service delivery charters, 306 (59.9%) had customer service registers and 307 (60.1%) maintained complaint registers. The counties with the highest number of Huduma Centres were Nairobi with 5, followed by Tharaka Nithi with 4, then Muranga, Kiambu, Baringo, Laikipia, Kajiado

and Kisumu with 2 each. The rest of the counties had one Huduma Centre each. It appears there is no clear criteria used for establishment of Huduma Centres, as some less expansive, sparsely populated counties like Tharaka Nithi have up to four centres, while the five most expansive counties have only one each.

On decentralisation of services, institutions that reported to have decentralised services to county, sub-county and ward levels were 140 (44.6%) with ministries and state departments having the highest percentage of decentralised offices. In addition, institutions reported having: 51 (11.5%) patented 690 products, 171 (33.5%) institutions were registered as data controllers and/or processors, and 99 (19.4%) institutions participated in the June 2025 Public Service Week.

There were 206 (40.3%) institutions which reported to have established lactation stations while 59.7% had not. It was however noted that only 108 (52.4%) institutions were fully equipped and functional. Additionally, 431 (84.3%) institutions indicated they customised over 30,117 facilities and services for access by PWDs, while 148 (29.0%) implemented the Knowledge Management Policy.

The overall performance index for the thematic area of improvement in service delivery was 32% and 92 (61.0%) institutions were rated as high achievers, 316 (31.8%) as medium achievers and 103 (6.9%) as low achievers.

It is recommended that institutions that had not customised the common service charter, and those without customer service registers, complaint and compliment registers, comply by March 31, 2026. In addition, the State Department for Public Service and Human Capital Development to develop fair criteria to ensure equity in the establishment of Huduma Centres and the State Department for Public Health and Professional Standards to audit compliance with Section 71 of the Health Act, 2017, regarding lactation stations.

On the thematic area of high standards of professional ethics, the performance indicators evaluated included, the number of institutions that sensitised officers on the revised Public Service Code of Conduct and Ethics of 2016, which guides the conduct of and the professional standards with which all public officers discharge their duties, the number of institutions that sensitised officers on financial disclosures, the number of officers registered with regulated professional bodies, their standing with their professional bodies, and participation in the continuous professional development (CPD), the number of officers disciplined the number, charged in court or convicted of professional misconduct and the status of authentication of academic and professional certificates, including actions taken against officers with fake certificates.

There were 191 (37.4%) institutions which reported to have sensitised officers on the Public Service Code of Conduct and Ethics of 2016 while 144 (28.2%) sensitised officers on financial disclosures. Most (62.6%) of the evaluated institutions did not sensitise officers on the Public Service Code of Conduct and Ethics and 71.2% had not sensitised officers on financial disclosures. A total of 393 institutions reported to have 33,579 professionals in different fields out of whom 20,078 (94.6%) underwent CPD training and 99.9% were in good standing with their respective professional bodies. Most (87.8%) of the TVET institutions had officers who had undergone pedagogy training, which is critical in professionalising TVET training.

A total of 175 (34.2%) institutions reported having disciplined 2,259 officers, most (62.8%) of whom were from state corporations and SAGAs. It was also reported that 18 (0.1%) of the officers were disciplined by their professional bodies for different misconducts. There were 99 institutions which authenticated academic and professional certificates for their officers. From the authentication, 561 certificates were found to be fake out of which 267 (47.6%) were KCSE certificates. It was further noted that no action was taken by 28 (28.3%) institutions that found officers with fake certificates.

The overall performance index for the thematic area of high standards of professional ethics in public service was 46.5%. 103 institutions were rated as high achievers with a mean score of 88.3%, 341 were medium achievers with a mean of 42.8% and 67 were low achievers with a mean score of 0.9%.

It is recommended that the authorised officers who had not taken action on the 28.3% of officers found with fake certificates to initiate disciplinary action and conclude the same by 31st March 2026. Further, the framework for authentication of certificates in the public service be fast-tracked. In addition, in view of the repeal of the Public Officer Ethics Act, 2003 by the Conflict of Interest Act, 2025, EACC, in collaboration with PSC, to review the Public Service Code of Conduct and Ethics of 2016 and the the Administrative Procedures for Declaration of Income, Assets and Liabilities of 2016 to align with the Conflict-of-Interest Act 2025.

On the thematic area for good governance, transparency and accountability, the performance indicators evaluated included: acting appointments, number of officers performing higher duties, constitution of commissions, boards and council members, reported cases of corruption, civil proceedings against public institutions, management of gifts and conflict of interest, adoption of measures to fight corruption including: establishment of corruption prevention and integrity assurance officers committees, development of policies to promote good governance, declaration of incomes assets and liabilities, preparation of annual reports, implementation of international treaties and conventions; and hearing and determination of appeals from the county government public service.

From the findings, 262 (51.3%) institutions reported that they had 2,642 (1.1%) officers on acting appointment and 152 (29.7%) indicated that they had 1,637 (0.7%) officers assigned to perform higher duties. Analysis also revealed that 21.8% of the officers appointed in acting capacity had acted beyond the six-month period allowed by law, and that some of the officers appointed to perform higher duties were paid special duty allowance for more than six months.

With regard to institutions ran by Commissions, Boards or Councils, 335 (72.8%) of the 460 institutions had full membership. It is recommended, that the authorities responsible for the appointment of commissioners/ board or council members expedite appointment of members to the affected institutions.

On corruption prevention, it was established that 80 (15.7%) institutions had functional CPC and IAO Committees and 411 (80.4%) had developed the corruption prevention policies. 98% of the institutions did not maintain a conflict of interest registers despite 10 (2%) institutions reporting 221 conflict of interest cases. There were 73 institutions which reported having gift registers, however, majority (97.3%) of the registers did not conform to the prescribed format. A total of 53 (10.4%) 370 officers from 73 (14.3%) institutions were reported to have received 702 gifts. Most (81.8%) gifts were valued within the Kshs.20,000 amount prescribed by EACC, 3.4% exceeded the prescribed amount while the value for 13.8% of the gifts was not indicated. On gifts given out 416 (75.9%) were below Kshs.20,000, 62 (11.3%) were valued between Kshs.20,000-100,000, 37 (6.8%) between Kshs.100,000-500,000 and 3 (0.5%) between Kshs.500,000-1,000,000.

There were 19 (3.7%) institutions that indicated there were reported cases of corruption implicating 151 (0.06%) public officers and 211 (41.3%) reported that civil proceedings were filed against them. The total judgement awards reported by institutions was Kshs 66,432,890,000 this was an increase from Kshs. 43,851,220,746 reported in the 2023/2024 evaluation. It is recommended that EACC and PSC undertake awareness creation to public officers on management of gifts and conflict-of-interest in accordance with Conflict of Interest Act, 2025 and public institutions to strengthen institutional governance structures. Institutions that had not developed Corruption prevention policies or established Corruption Prevention and Integrity Assurance Officers Committees to do so by 31st March, 2026.

On compliance with the recommendation for preparation of annual reports and the requirement on declaration of incomes assets and liabilities, 53 (10.4%) institutions reported having prepared an annual report, 10,610 (74.1%) of the newly employed public officers submitted their initial declarations within the 30-day, while 4,810 (49.8%) submitted their final declarations within 30 days of exiting the service. It is recommended that the National Treasury and the State Department for Economic Planning to issue policy guidelines to all public institutions to prepare and submit annual reports.

The overall performance index for the thematic area of good governance, transparency and accountability was 37.1%. 93 institutions were rated as high achievers with a mean score of 71.9%, 308 as medium achievers (mean 37.9%) and 110 as low achievers (5.5%).

On performance management, the indicators evaluated were the number of institutions that: submitted the 5th generation strategic plans under MTP IV to State Department for Economic Planning; implemented productivity mainstreaming; developed the institutional annual work-plan for 2024/2025 FY; implemented performance contracting; implemented performance improvement plans (PIP); oriented and inducted newly appointed officers; conducted skills and competences audit and trained officers.

From the report findings, 163 (31.9%) institutions reported having submitted their strategic plans to the State Department for Economic Planning for vetting and approval, 403 (78.9%) reported having implemented the Productivity Improvement Strategy, 426 (83.4%) institutions developed an annual work-plan for 2024/2025 FY while 198 (38.7%) institutions signed PC's. In addition, 410 (80.2%) institutions implemented performance contracts and were evaluated while 101(19.8%) were not. 61.3% of the evaluated institutions had not signed performance contracts as at 30th August 2024.

With regard to target settings, 199,467 (81.7%) employees set targets, 145,488 (59.6%) were appraised while 27.1% of those who set targets were not appraised. On skills and competency audits, 69.5% of the institutions had not undertaken skills and competency audits, 62.5% of the officers projected for training undertook the training. 11.2% of the evaluated institutions facilitated training for officers who were not on the training projections.

It is recommended that the State Department for Economic Planning enforces compliance with strategic plan guidelines, and that all public institutions: create awareness on productivity improvement by 30th June 2026, prepare annual work-plans to guide the implementation of institutional and individual performance contracts and the government to institutionalise performance management in the public service through providing for a legislative framework which spans the three arms of government and the county governments.

The overall performance index for the performance management thematic area was 50.5%. 64 institutions were rated as high achievers with a mean score of 69.9%, 369 were medium achievers (mean 51.9%) and 78 were low achievers (mean 28.2%).

On equitable allocation of resources and opportunities, the performance indicators evaluated included the: availability of diversity management policy; status of diversity representation in the public service generally, TVET Institutes, Commissions, Boards and Councils and top leadership in the public service. Others were gender, ethnic and PWD representation in: appointments made in FY2024/2025, training, promotions, internship opportunities and award of procurement opportunities to special groups. The other indicators were: distribution of scholarships, bursaries and loans to students and implementation of affirmative action programs, social protection programmes, and the Equalisation Fund.

On the status of gender, ethnic and PWD representation, it was established that gender representation was achieved globally at 60.5% male and 38.8% female. Representation at policy positions was however skewed in favour of the male gender at male gender (77%) compared to the female gender (23%). PWD representation was at 1.9%, a marginal increase of 0.1% from the 1.8% recorded in the FY2023/2024 evaluation. In addition, 44 (93.6%) ethnic communities were represented out of which 86.3% had normal representation, one was overrepresented, while another 4 (8.5%) were grossly underrepresented. However, it was noted that some (6.4%) of the communities were not represented in the public service. It is therefore recommended that institutions implement the affirmative action programmes (2024/25 – 2026/27) prescribed by the Commission for their institutions to address gender, ethnicity and PWD gaps.

Public service includes those appointed as members of commissions, boards and councils. Article 250 (4) of the Constitution provides that appointments to the Commissions and Independent Offices shall take into account the national values mentioned in Articles 10 and the principle that the composition of the commissions and offices, taken as a whole, shall reflect the regional and ethnic diversity of the people of Kenya. The same principle of ensuring diversity applies to the composition of boards and councils pursuant to Article 232 of the Constitution. Since one institution cannot be able to accommodate all the ethnic communities, taken as a whole, the available opportunities should be able to accommodate all ethnic communities. The same should also be reflected in the top leadership of public institutions.

An evaluation on the composition of commissions, boards, committees, councils or members collectively established gender representation was 1,285 (33.4%) female, 2,444 (63.6%) and PWD representation with 71 (1.8%) PWDs. On ethnic representation, eight (17.4%) ethnic communities were not represented, 3 (6.7%) were over-represented, 2 (4.4%) were underrepresented and 3 (6.7%) were grossly under-represented.

It was further established that 20 (43.5%) ethnic communities were represented in public universities councils while 26 (56.5%) were not. 19 of the 37 evaluated public universities had representation from one ethnic community, constituting over 50% of the in-post and 14 (30.4%) ethnic communities were not represented in TVETIs' Boards yet there were 1,557 appointive positions to boards/councils of TVETIs, enough to appoint 33 members from each of the 46 ethnic communities.

It is, therefore, recommended that appointments to membership of Constitutional Commissions and Independent Offices be proportionately distributed among the 46 ethnic communities as provided for in Article 250 (4) of the Constitution. Further, appointments to public universities councils and boards and councils be made in a manner that promotes a representative and inclusive public service.

The Access to Government Procurement Opportunities (AGPO) programme is an affirmative action measure giving life to the values and principles of non-discrimination and protection of the marginalised. It supports empowerment youth, women and PWDs by ring fencing 30% of the procurement budget. It was established that 442 (86.5%) institutions awarded tenders under AGPO. The number of institutions increased by 47 from the 395 reported in FY 2023/2024. The highest number of tenders and value of tenders were awarded to women, with 37,025 (58.8%) valued at Ksh.38.65 B, followed by youth with 17,607 (28%) valued at Ksh.18.38 B and PWDs with 4,896 (7.9%) valued at Kshs 5.1B. However, none of the sectors complied with the 30% AGPO requirement and it is therefore recommended that the National Treasury enforces compliance with AGPO Policy.

On distribution of scholarships by the State Department for Higher Education, the evaluation found that 457 scholarships was distributed to students out of which 277 (60.6%) were male and 180 (39.4%) were female. The details on ethnicity and the status of Persons with Disabilities (PWDs) were not provided. It is therefore recommended that the State Department for Higher Education publicise available scholarships through print and electronic media with wide circulation and also maintain a database of scholarship recipients disaggregated by gender, ethnicity and PWD status.

The State Department for Basic Education administers Elimu Scholarship for the needy and vulnerable learners in secondary schools in all the 47 counties through the Jomo Kenyatta Foundation and Equity Group Foundation. It was established that under this Programme KSh. 1.6B was disbursed to 19,866 (0.48%) beneficiaries of whom 9,903 (49.8%) were female and 9,963 (50.2%) were male. The bulk of the Elimu scholarship allocation was disbursed to Turkana, Garissa and Nairobi counties. However, ethnicity details for the bursary beneficiaries were not provided.

Still on the support for vulnerable children, 15,242 special needs students benefitted from NG-CDF bursaries worth Ksh.95,459,974, out of whom 7,268 (47.7%) were female and 7,974 (52.3%) were male. 14,965 (98.2%) of the beneficiaries were PWDs while 277 (1.8%) were Non-PWDs. It is recommended that the NGCDF ensures bursary beneficiaries in this category are learners with special needs as per bursary guidelines

On social protection programmes, Kshs. 9.7B was disbursed to 1.09M Orphans and Vulnerable Children across the 47 counties. The amounts received by the beneficiaries ranged between Kshs, 5,493.96 in Samburu County and Kshs. 12,592.84 in Kirinyaga County. The average amount per beneficiary was Kshs. 8,874.98. It is recommended that the State Department for Social Protection develop a policy framework providing a criterion for equitable distribution of social protection funds.

On implementation of the Equalisation Fund, there were 84 projects reported by the State Department for Medical Services, spread across 8 counties which were reported to have commenced in 2017. 21(25%) of the projects were completed, 48 (57.1%) were ongoing while 15 (17.9%) had stalled. It was also established that there is low electricity connectivity and bitumen road networks in the marginalised areas. It was also observed that only three Equalisation Fund Appropriation Acts have been enacted since 2010 (2017, 2018 and 2023) and the Funds life is for 20 years from promulgation of the Constitution. It is therefore recommended that the Auditor General undertakes a special audit on the stalled projects and the Equalisation Fund Advisory Board to develop a criteria to facilitate equitable distribution of funds for development of projects in marginalised areas.

The Higher Education Loan Board (HELB) disbursed KSh.46,926,680,377 to 726,628 loan beneficiaries during the evaluation period. The number of loan beneficiaries increased by 121,192 from the

605,436 reported in the 2023/2024 FY. The amount disbursed also increased by 14.04B from the KSh.32.9B reported in the previous evaluation period. Of the beneficiaries, 301,949 (42%) were female, 424,679 (58%) were male and 396 (0.054%) were PWDs. It was however noted that ethnicity details for the beneficiaries were not provided. It is therefore recommended that HELB maintains a database of loan disbursements to students disaggregated by gender, ethnicity and PWD status.

Studio Mashinani is an empowerment program targeting talented youths. The project aims to increase the availability of recording studios and expand self-employment opportunities for young artists in the creative music industry. It was established that during the evaluation period, Studio Mashinani recording studios were established in 2 (4.3%) out of the 47 counties. Further, there were no project beneficiaries in 89.4% of the counties, while 10.1% of the beneficiaries were 35 years and above and therefore not eligible for this youth project. It was also noted that there no project beneficiaries from 73.9% of the ethnic communities. It is therefore recommended that KBC establishes Studio Mashinani in the 47 counties, with a priority on rural counties, as recommended in the 2023/2024 Evaluation Report.

The overall performance index for the thematic area of equitable allocation of opportunities and resources was 41.1%. 82 institutions were rated as high achievers, with a mean score of 62%; 355 were rated as medium achievers (mean 41.9%); and 74 were rated as low achievers (mean 13.95%).

On the thematic area for public participation, the performance indicators evaluated were the, number of institutions with the public participation policy, mode of communication during the public participation process, stakeholder validation on developed policies or legislations and number of institutions that engaged services of a sign language interpreter in the public participation.

It was established that 116 (22.7%) institutions had a public participation policy and 276 (54%) developed 230 policies or legislation, of which 162 (70.4%) were subjected to validation after public participation. It was also noted that 64 (12.5%) institutions engaged the services of 228 sign language interpreters during public participation. Further, seven (3%) institutions reported to have developed policies or legislations which were transcribed into Braille. It is therefore recommended that all public organisations develop a public participation policy and guidelines and also engage sign language interpreters during public participation fora.

The overall performance index for the thematic area of public participation in policy-making was 33.2%. 110 institutions were rated as high achievers, with a mean score of 88.6%; 86 were rated as medium achievers (mean 50%); and 315 were rated as low achievers (mean 9.2%).

Under the thematic area of efficiency, effectiveness and economic use of resources and sustainable development, the performance indicators evaluated were the status of: budget utilisation and revenue collection, budget implementation in the public service, collection of Appropriation in Aid (A-in-A) by public institutions, implementation of development projects, implementation of development projects in TVET Institutes, implementation of the Kenya Vision 2030 Programmes, implementation of programmes to support the realisation of BETA, Compliance with Public Procurement and Assets Disposal Act, 2015, Implementation of Public Accounts Committee (PAC) Recommendations, implementation of Public Investments Committee (PIC) Recommendations, audit by the Office of the Auditor General.

It was established that 375 (73.4%) institutions collected Kshs 601.8 billion Appropriations-in-Aid (A-in-A) against a total target of Kshs 636.34 billion. Further 244 (47.7%) institutions implemented 3,780 projects, of which 1,101 (29.1%) and 1,011 (26.7%) had feasibility studies and Environmental Impact Assessment undertaken respectively. Further, 1,413 (37.4%) of the projects were completed, 2,064 (54.6%) were ongoing while 63 had stalled. It is recommended that the Office of the Auditor General undertakes a special audit on stalled projects.

On implementation of the Kenya Vision 2030 projects, it was reported that 36 (36.1%) of the projects were completed while 63.9% were ongoing. It was established that the Kenya Vision 2030 Board had not assessed progress towards attaining Kenya's industrialisation and middle-income status. It is, therefore, recommended that the Board undertakes periodic monitoring and evaluation of the Vision 2030 programmes to establish the level of progress towards realisation of the vision.

On implementation of the Buy Kenya – Build Kenya Strategy which requires public institutions to allocate at least 40% of their procurement budgets for the purchase of locally produced goods and services which creates employment and promotes sustainable development. It was established that 430 (84.2%) institutions implemented the strategy while 15.8% did not. It is therefore recommended that the State Department for Industry to undertake continuous awareness creation on the provisions of the Buy Kenya-built Kenya policy to enhance compliance level across the public service.

The opinion of the auditor general is an indicator of how a public institution utilised resources allocated to it. The opinion may be an “unqualified opinion”, meaning the Auditor General found no issues with the institution’s financial statements, a “qualified opinion” meaning the institution had not complied with the generally accepted accounting principles and standards, a “disclaimer” meaning the Auditor General did not get enough information to form an opinion or an “adverse opinion” meaning the Auditor General may have found financial misappropriation, fraud and other irregularities, including inconsistencies in the financial statements.

It was established that (66.5%) institutions received qualified audit opinion, 26.8% received unqualified opinion, 2.9% received adverse opinion, and 0.2% received a disclaimer of opinion. It is recommended that the Chief of Staff and Head of Public Service enforces the implementation of the recommendations in the Auditor General’s report by the institutions which had qualified, adverse and disclaimer opinions.

Regarding the requirement to pre-qualify suppliers for goods, services and works and uploading their particulars on the Public Procurement Information Portal (PIPP), 30.9% of the institutions reported having maintained an approved list of prequalified suppliers. It is therefore recommended that PPRA undertakes an audit of the 353 institutions that did not have a list of prequalified suppliers and those that did not provide information on the same.

On implementation of the Parliamentary Public Accounts Committee (PAC) and the Public Investment Committee (PIC) recommendations, it was established that 41 (8%) institutions received 356 recommendations from PAC, of which 211 (59.3%)

were fully implemented, 120 (33.7%) were partially implemented and 18 (5.1%) were not implemented. Separately, 49 institutions received 389 PIC recommendations, out of which 183 (47%) were fully implemented, 129 (33.2%) were partially implemented and 77 (19.8%) were not implemented. It is therefore recommended that the Office of the Chief of Staff and Head of Public Service establish the circumstances of partial or non-implementation of PIC and PAC recommendations by the affected institutions.

The overall performance index for the thematic area of efficiency, effectiveness and economic use of resources and sustainable development was 41%. 82 institutions were rated as high achievers, with a mean score of 69.94%; 333 were rated as medium achievers (mean 41.6%); and 96 were rated as low achievers (mean 14.4%).

Overall, 71 institutions were rated as high achievers with an average compliance index of 65.56%, 348 were rated as medium achievers with an average compliance index of 44.62% and 92 were rated as low achievers with an average compliance index of 22.26%. The overall compliance index for all the 511 institutions evaluated was 43.5% compared to 43.8% in the previous year’s evaluation (2023/2024). This was a moderate score, indicating room for improvement in adherence to the values and principles set out in Articles 10 and 232 of the Constitution. The moderate compliance levels once again suggest gaps in the implementation of values and principles across the evaluated institutions.

9.0 REPORT RECOMMENDATIONS

9.1 GENERAL RECOMMENDATIONS

- i. The 40 organisation that did not participate in the 2024/25 Values and Principles compliance evaluation survey, as well as the 21 that submitted incomplete data be required to give reasons for the failure to comply with the evaluation requirements;
- ii. Public institutions to comply with the requirements on establishment and abolition of offices as provided under Article 234(1)(a)(i) of the Constitution and Part IV of the Public Service Commission Act, CAP 185.

- iii. Public institutions to ensure Workload analysis report form part of the annexures when making requests for the establishment of offices.
- iv. All public institutions to undertake job analysis to inform the development of job descriptions and job specifications for all new offices.
- v. All public institutions to develop five-year Human Resource Management and Development Plans by 31st December 2026.
- vi. Public institutions to review their organisation structures to determine the optimal number of staff required to discharge their mandates and budget appropriately.
- vii. Public institutions to implement the government policy on migrating public services online, this will reduce on the number of officers to be recruited by public institutions
- viii. Public institutions with non-technical staff exceeding 30% of the total staff complement to give priority to recruitment of technical staff in future recruitments.
- ix. All public institutions which had not complied with the Circular Ref. No.OP. CAB.3/16 dated 9th December, 2024 on migration of HR Data to the Human Resource Information System (HRIS) Kenya be directed to comply by 30th June, 2026.
- x. Public institutions should leverage on technology and undertake training on values and principles through online platforms that are more cost effective;
- xi. Public institutions to utilise social media, TV and radio for messaging to promote Values and Principles.
- xii. Public institutions to utilise institutional social media platforms to disseminate messages on Values and Principles since most of the platforms were reported to have a large following.
- xiii. All public institutions to develop diverse forms of artwork to promote values and principles and place the same in appropriate places including on the institutional social media platforms.
- xiv. All public institutions to utilise sporting activities to promote Values and Principles in the public service.
- xv. All public institutions to utilise the existing digital platforms to develop and disseminate IEC materials with Values and Principles messages.
- xvi. All public institutions to ensure the service charters posted on the websites are in formats fully accessible to PWDs by 31st December 2026
- xvii. All Authorised Officers to ensure exiting officers file their declarations as part of the clearance process from public service
- xviii. Public institutions to institutionalise authentication of certificates of officers before issuance of appointment letters at entry level and for those being considered for promotional appointments, as recommended in the 2023/2024 FY.
- xix. All public institutions to comply with the prescribed requirements on implementation of performance contracting system as provided in the Performance Management Regulations, 2021
- xx. All public institutions to adopt standardised appraisal instruments and appraisal rating scales.

9.2 RECOMMENDATIONS TO PARLIAMENT

- i. Fast-track the enactment of the Public Participation Bill, 2025.
- ii. Fast-track the enactment of the Public Service Human Resource Management Bill.
- iii. Fast-track the enactment of the whistle-blower protection Bill.
- iv. Review and harmonise the laws aimed at preventing corruption.

- v. Enhance oversight on implementation of Equalisation fund projects

9.3 RECOMMENDATIONS TO THE PRESIDENCY

- i. The institutions mandated to fight corruption to establish a framework for collaborative engagement in the prevention and fight against corruption.
- ii. Undertake compliance enforcement of the cabinet decision requiring public officers who make decisions or take actions leading to litigations where government suffers awards against it to take personal responsibility for the losses.
- iii. Promote equitable distribution of appointment opportunities for members of constitutional commissions and independent offices among the 46 ethnic communities to facilitate a representative and inclusive public service and national cohesion as provided for in Article 250 (4) of the Constitution.
- iv. Appointing authorities to promote equitable distribution of appointment opportunities for membership of Boards of State Corporations to promote equitable share of appointment opportunities in state corporations among the 46 ethnic communities and to promote a representative and inclusive public service and build national cohesion.
- v. The appointing authorities to promote equitable distribution of appointment opportunities for members of boards or councils of statutory commissions and authorities among the 46 ethnic communities to facilitate national cohesion as provided for in Article 250 (4) of the Constitution.
- vi. The appointing authorities to promote the two-thirds gender rule and the 5% PWDs appointment opportunities for members of boards and councils of statutory commissions and authorities to facilitate a representative and inclusive public service and build national cohesion.
- vii. Promote equitable distribution of appointment opportunities for Principal Secretaries among the 46 ethnic communities to facilitate a representative and inclusive public service and national cohesion as provided for in Article 250 (4) of the Constitution.
- viii. The appointing authority to promote equitable distribution of appointment opportunities for CEOs and Vice Chancellors public institutions among the 46 ethnic communities to facilitate a representative and inclusive public service and national cohesion.
- ix. Strengthen support to sectors with low participation—particularly statutory bodies, universities and Commissions—to enhance balanced national implementation of BETA priorities.

9.4 KEY CROSS CUTTING RECOMMENDATIONS BY THEMATIC AREAS TO PUBLIC INSTITUTIONS

I. REGARDING IMPLEMENTATION OF HUMAN RESOURCE FUNCTION IN THE PUBLIC SERVICE, IT WAS RECOMMENDED THAT:

- i. Public institutions to comply with the requirements on establishment and abolition of offices as provided under Article 234(1)(a)(i) of the Constitution and Part IV of the Public Service Commission Act, CAP 185.
- ii. Public institutions to ensure Workload analysis report form part of the annexures when making requests for the establishment of offices.
- iii. All public institutions to develop five-year Human Resource Plans.
- iv. The State Department for TVETs to freeze recruitments of trainers for general courses until the ratio stabilises at the recommended 1:50 tutor-student ratio.
- v. All public institutions to pay staff through the Human Resource Information System-Kenya (HRIS-Ke) payroll system.
- vi. The Pensions Department to fast-track automation of processing of pensions through Digitalisation and business process reengineering to facilitate seamless transition of officers from monthly salary payments to monthly pension payments.

II. REGARDING PROMOTION OF VALUES IN THE PUBLIC SERVICE, IT WAS RECOMMENDED THAT:

- i. Public institutions should leverage on technology and undertake training on values and principles through online platforms that are more cost effective.
- ii. Public institutions to utilise institutional social media platforms to disseminate messages on Values and Principles since most of the platforms were reported to have a large following.
- iii. The Ministry of Education in collaboration with other public institutions to promote artwork on the promotion of values and principles at all levels of learning including the Kenya Music and Drama Festivals.

III. REGARDING SERVICE DELIVERY, IT WAS RECOMMENDED THAT:

- i. The 437 institutions that failed to comply with the Commission Circular on Customisation of common service areas to comply.
- ii. All public institutions to ensure the service charters posted on the websites are in formats fully accessible to PWDs.
- iii. All Public Institutions without customer service registers to establish and operationalise customer service registers.
- iv. State Department for ICT and Digital Economy to enforce implementation of the National ICT Policy, 2019 and the National Assets and Liabilities Policy, 2020.
- v. The State Department for Public Service and Human Capital Development to review the fixed service delivery Huduma model applied across the country to allow for the nomadic population in northern Kenya most of whom are not settled in any one place and adopt a mobile caravan Huduma Centre model for ease of access to the nomadic population.
- vi. The State Department for National Heritage to undertake an audit on the status of implementation of the Knowledge Management Policy in the public service.
- vii. The State Department for Public Service and Human Capital Development to develop and issue policy guidelines on employee wellness programs in order to standardise the implementation of wellness programs in the public service.

IV. REGARDING HIGH STANDARDS OF PROFESSIONAL ETHICS, IT WAS RECOMMENDED THAT:

- i. The Ethics and Anti-Corruption Commission to review the Public Service Code of Conduct and Ethics 2016 to align with the Conflict of Interest Act, 2025 and facilitate sensitisation of officers in the public service on the new code.
- ii. The Authorised Officers to ensure authentication of membership of regulatory professional body before approval of CPD training
- iii. Certification bodies to fast-track the framework for authentication of certificates in the public service.

V. REGARDING GOOD GOVERNANCE, TRANSPARENCY AND ACCOUNTABILITY, IT WAS RECOMMENDED THAT:

- i. The Authorised Officers in the affected institutions to comply with the prescribed six month period for payment of special duty allowance and take corrective action on officers who had exceeded the period allowed for performing higher duties.
- ii. The State Departments for Technical and Vocational training institutions, the National Treasury, Broadcasting and Telecommunication and Higher Education to initiate appointments to the vacant positions in the public institutions listed to promote good corporate governance.
- iii. The government to establish multi-agency forum to synergise efforts to prevent and combat corruption in order to arrest and reverse runaway corruption and haemorrhage of public funds.
- iv. The Ethics and Anti-Corruption Commission to facilitate awareness creation to public officers on management of gifts in accordance with the provisions of Conflict of Interest Act, 2025.

VI. REGARDING PERFORMANCE MAGANEMENT, IT WAS RECOMMENDED THAT:

- i. The State Department for Economic Planning to undertake an audit of the development and approvals of Strategic Plans aligned to the BETA.
- ii. The State Department for Labour and the National Productivity and Competitiveness Centre to promote awareness on productivity improvement in the public service to promote uptake of productivity improvement strategies.
- iii. The Performance Management Unit in the National Executive to spearhead review and standardisation of SPAS tool.
- iv. All public institutions to adopt standardised appraisal instruments and appraisal rating scales.
- v. Authorised Officers in public institutions to adhere to the provisions of the Human Resource and Development Policy for the Public Service (2015) and ensure orientation of officers on transfer, promotion, re-designation, secondment and deployment.
- vi. Public Service Commission in collaboration with the State Department for Public Service and the Kenya School of Government to establish the reasons for the declining training opportunities for officers in the public service and training for officers not projected for training.

VII. REGARDING EQUITABLE ALLOCATION OF RESOURCES AND OPPORTUNITIES, IT WAS RECOMMENDED THAT:

- i. All public institutions to implement the prescribed affirmative action programmes issued by the public service to redress diversity gaps.
- ii. The TVETIs that had not met the gender and PWD representation thresholds to implement the prescribed affirmative action programmes.
- iii. The appointing authorities to promote the two-thirds gender rule and the 5% PWDs appointment opportunities for members of boards and councils of statutory commissions and authorities to facilitate a representative and inclusive public service and build national cohesion.
- iv. Public institutions which did not comply with the Constitutional thresholds in appointment of interns in the Public Service to comply with the requirements for two-thirds gender representation, 5% PWDs threshold and the proportionate representation of ethnic communities.
- v. The National Treasury to enforce compliance with AGPO Policy.
- vi. The State Department for Industry to undertake continuous awareness creation on the provisions of the Buy Kenya-built Kenya policy to enhance compliance levels across the public service.

- vii. The State Department for Higher Education to publicise available scholarships in print and electronic media with wide circulation and followership.
- viii. Higher Education Loans Board to maintain a database of loan disbursements to students disaggregated by gender, ethnicity and PWD status as recommended in the 2023/2024 Values and Principles Report.

VIII. REGARDING PUBLIC PARTICIPATION IN POLICY MAKING PROCESS, IT WAS RECOMMENDED THAT:

- i. All public institutions without public participation policy to develop the policy or customise the PSC.
- ii. All public institutions to transcribe draft policy documents into braille or other formats accessible to persons with visual impairments.
- iii. All public institutions to engage sign language interpreters during public participation fora.
- iv. All public institutions to ensure that policies developed are validated at the tail end of the development through public participation before approval.

IX. REGARDING EFFICIENCY, EFFECTIVENESS AND ECONOMIC USE OF RESOURCES, IT WAS RECOMMENDED THAT:

- i. The National Treasury to develop guidelines to clarify recurrent to development ratio for institutions that are service oriented and which do not implement infrastructural projects such as roads, dams, housing etc.
- ii. The Auditor General to undertake an audit of TVETIs service sector which reported budget absorption rates for development below 39%.
- iii. The National Treasury conduct periodic audits to ensure proper declaration and settlement of A-in-A.
- iv. The National Treasury and the State Department for Economic Planning to enforce cost containment by ensuring projects are completed at planned costs.
- v. The Kenya Vision 2030 Board to undertake periodic monitoring and evaluation of the Vision 2030 programmes and publish the evaluation report(s).
- vi. The Office of the Chief of Staff and Head of Public Service to establish the circumstances of partial or non-implementation of PAC recommendations by the affected institutions.
- vii. The Public Procurement Regulatory Authority to publicise the Code of Conduct and Ethics for Persons Participating in Public Procurement 2019.

PAUL FAMBA,
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